

STATE OF NEW YORK

3244--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. WOERNER, ANGELINO, MAGNARELLI, DeSTEFANO, LUPARDO, SIMON, PAULIN, LUNSFORD, SEAWRIGHT, GLICK, JONES, BICHOTTE HERMELYN, RAGA, ROMERO, STECK, BAILEY, BUTTENSCHON -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requirements for licensure as a dentist

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision 4 of section 6605 of the education law, as amended by chapter 57 of the laws of 1999, is amended and two new subdivisions 2-a and 6 are added to read as follows:

2-a. (a) On recommendation of the board, the department may issue a limited permit to a dentist not licensed under this article to participate as a general practice dental preceptee in a preceptorship program under the supervision of a licensed dentist practicing in a federally qualified health care facility or similar facility that primarily serves an underserved population, and in doing so to practice dentistry as defined in this article, but only on the premises of such federally qualified health care facility or such similar facility as may be used to conduct the preceptorship program, provided such preceptee: (i) is licensed to practice dentistry in a jurisdiction outside of the United States and is not eligible to apply for licensure by endorsement pursuant to subdivision six of section sixty-five hundred six of the education law; (ii) has completed a preliminary competency examination in accordance with the commissioner's regulations; (iii) has a minimum of five years full-time dental practice experience or the equivalent thereof within the seven years immediately preceding the request for a limited permit; and (iv) practices for the duration of the preceptorship

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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program exclusively in a federally qualified health care facility or similar facility that primarily serves an underserved population.

(b) A licensed preceptor dentist who supervises a preceptee pursuant to this subdivision shall have practiced for at least three years immediately preceding the assumption of a preceptorship and shall have under their supervision not more than one full-time preceptee nor more than two part-time preceptees.

4. A limited permit under this section shall be valid for one year or until ten days after notification of denial of an application for license. A limited permit may be renewed for one year, except if the applicant is serving in a residency program in a hospital or school of dentistry or preceptorship program in a federally qualified health care facility or such similar facility in this state. A limited permit may be renewed annually for the duration of such residency program or preceptorship program. The fee for each limited permit and for each renewal shall be one hundred five dollars.

6. A dentist that complies with the provisions of subdivision two or two-a of this section for a duration of five years, upon satisfactory completion of such five years of practice, may apply for licensure as a dentist in this state.

§ 2. Subdivisions 3 and 6 of section 6604 of the education law, subdivision 3 as amended by chapter 613 of the laws of 2022 and subdivision 6 as amended by chapter 669 of the laws of 2022, are amended to read as follows:

(3) Experience: have experience satisfactory to the board and in accordance with the commissioner's regulations, provided that such experience shall consist of (i) satisfactory completion of a postdoctoral general practice or specialty dental residency program, of at least one year's duration, in a hospital or dental facility accredited for teaching purposes by a national accrediting body approved by the department, or (ii) satisfactory completion of at least five year's duration practicing as a dentist with a limited permit issued in accordance with subdivision two or two-a of section sixty-six hundred five of this article, provided, further that any such residency program, employment by a registered school of dentistry or preceptorship program shall include a formal outcome assessment evaluation of the resident's or dentist's competence to practice dentistry acceptable to the department;

(6) Citizenship or immigration status: be a United States citizen or a noncitizen lawfully admitted for permanent residence in the United States; provided, however, that the board of regents may grant a three year waiver for a noncitizen to practice in an area which has been designated a federal dental health professions shortage area, except that the board of regents may grant an additional extension not to exceed six years to a noncitizen to enable ~~him or her~~ such noncitizen to secure citizenship or permanent resident status, provided such status is being actively pursued; and provided further that the board of regents may grant an additional three-year waiver, and at its expiration, an extension for a period not to exceed six additional years, for the holder of an H-1b visa, an O-1 visa, or an equivalent or successor visa thereto;

§ 3. This act shall take effect on the ninetieth day after it shall have become a law. Effective immediately, the addition, amendment and/or repeal of any rule or regulation necessary for the implementation of this act on its effective date are authorized to be made and completed on or before such effective date.